ATTORNEY OR PARTY WITHOUT ATTORNEY	STATE BAR NUMBER:	FOR COURT USE ONLY
NAME:		
FIRM NAME:		
STREET ADDRESS:		
CITY:	STATE: ZIP CODE:	
TELEPHONE NO.:	FAX NO.:	
E-MAIL ADDRESS:		
ATTORNEY FOR *(name):*		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF		
STREET ADDRESS:		
MAILING ADDRESS:		
CITY AND ZIP CODE:		
BRANCH NAME:		
CHILD'S NAME:		
FINDINGS AND ORDERS AFTER DISPOSITIONAL HEARING (Welf. & Inst. Code, § 361 et seq.)		CASE NUMBER:

1. This matter came before the court on the
   ☐ original petition ☐ subsequent petition ☐ supplemental petition ☐ other *(specify):*
   filed on *(date):*
2. **Dispositional hearing**
   a. Date:
   b. Department:
   c. Judicial officer *(name):*
   d. Court clerk *(name):*
   e. Court reporter *(name):*
   f. Bailiff *(name):*
   g. Interpreter *(name and language):*

h. Party *(name):*	Present	Attorney *(name):*	Present	Appointed today
(1) Child:	☐		☐	☐
(2) Mother:	☐		☐	☐
(3) Father—presumed:	☐		☐	☐
(4) Father—biological:	☐		☐	☐
(5) Father—alleged:	☐		☐	☐
(6) Legal guardian:	☐		☐	☐
(7) Indian custodian:	☐		☐	☐
(8) De facto parent:	☐		☐	☐
(9) County agency social worker:	☐		☐	☐
(10) Tribal representative:	☐		☐	☐
(11) Other *(specify):*	☐		☐	☐

   i. Others present in courtroom:
      (1) Court Appointed Special Advocate (CASA) volunteer *(name):*
      (2) Other *(name):*
      (3) Other *(name):*

3. **The court has read and considered and admits into evidence the following:**
   a. ☐ Report of social worker dated:
      (1) ☐ For the purposes of establishing a guardianship, the report of the social worker includes an assessment as specified in Welfare and Institutions Code sections 360(a), 361.5(g).
      (2) ☐ In the case of an Indian child, the report of the social worker includes
         (a) Evidence that the agency *(check one):*
            (i) ☐ Has provided affirmative, active, thorough, and timely efforts to prevent the breakup of the Indian family and make it possible for the child to return home.
            (ii) ☐ Has not provided affirmative, active, thorough, and timely efforts to prevent the breakup of the Indian family and make it possible for the child to return home.

CHILD'S NAME:	CASE NUMBER:

3. a. (2) (b) Evidence that the agency efforts were *(check one):*
   (i) ☐ Successful
   (ii) ☐ Unsuccessful
   (c) An assessment in consultation with the Indian child's tribe, as required under Welfare and Institutions Code section 358.1(j), whether tribal customary adoption is an appropriate permanent plan for the child if reunification is unsuccessful.

   b. ☐ Report of CASA volunteer dated:

   c. ☐ Case plan dated:

   d. ☐ Other *(specify):*

   e. ☐ Other *(specify):*

   f. ☐ Testimony of qualified expert witness under the Indian Child Welfare Act

BASED ON THE FOREGOING AND ON ALL OTHER EVIDENCE RECEIVED, THE COURT FINDS AND ORDERS

4. a. ☐ Notice of the date, time, and location of the hearing was given as required by law.

   b. ☐ **For child 10 years of age or older who is not present:** The child was properly notified under Welfare and Institutions Code section 349(d) of their right to attend the hearing and was given an opportunity to be present, and there is no good cause for a continuance to enable the child to be present.

5. ☐ A Court Appointed Special Advocate is appointed for the child.

6. **Parentage**

   a. ☐ The court inquired of the child's parents present at the hearing and other appropriate persons present as to the identity and addresses of all presumed or alleged parents of the child. All alleged parents present during the hearing who had not previously submitted a *Statement Regarding Parentage* (form JV-505) were provided with and ordered to complete form JV-505 and submit it to the court.

   b. ☐ The clerk of the court is ordered to provide the notice required by Welfare and Institutions Code section 316.2 to
   (1) alleged parent *(name):*
   (2) alleged parent *(name):*
   (3) alleged parent *(name):*

7. **ICWA inquiry**

   a. ☐ The court finds that the social worker or probation officer has asked the child, if old enough, and their parents or legal guardians, and the following relatives: , whether there is information that provides reason to know the child is an Indian child.

   b. ☐ The court, on the record, has asked the child, if old enough, and their parents or legal guardians, all participants in the proceedings, and the following relatives: , whether there is information indicating the child is an Indian child.

   c. ☐ The parties were instructed to inform the court if they receive any information indicating that the child is an Indian child.

   d. ☐ The court finds that:
   (1) ☐ There is no reason to know that the child is an Indian child. The agency has an affirmative and continuing duty of inquiry to determine whether the child is or may be an Indian child and to report to the court on its inquiry efforts.
   (2) ☐ There is reason to know that the child is an Indian child and:
   (a) the agency has presented evidence in the record that it has exercised due diligence to identify and work with all of the tribes of which the child may be a member or citizen or eligible for membership or citizenship to verify the child's status;
   (b) notice has been provided as required by law; and
   (c) the court will treat the child as an Indian child until it is determined on the record that the child is not an Indian child.

   e. ☐ The court finds that the child is an Indian child and the Indian Child Welfare Act applies. The child is a member or citizen of, or eligible for membership or citizenship and a biological child of a tribal member or citizen, of the following tribe:

CHILD'S NAME:	CASE NUMBER:

Advisements and waivers

8. **The court informed and advised the**
   ☐ mother ☐ biological father ☐ legal guardian ☐ child
   ☐ presumed father ☐ alleged father ☐ Indian custodian
   ☐ other *(specify):*
   of the following: the right to assert the privilege against self-incrimination; the right to confront and cross-examine the persons who prepared the reports or documents submitted to the court by the petitioner and the witnesses called to testify at the hearing; the right to subpoena witnesses; the right to present evidence on one's own behalf; and the right of the child and each parent, legal guardian, and Indian custodian to be present and to be represented by counsel at every stage of the proceedings. The court may appoint counsel subject to the court's right to seek reimbursement, if an individual is entitled to appointed counsel and the individual is financially unable to retain counsel.

9. The ☐ mother ☐ biological father ☐ legal guardian ☐ child
   ☐ presumed father ☐ alleged father ☐ Indian custodian
   ☐ other *(specify):*
   has knowingly and intelligently waived the right to a court trial on the issues, the right to assert the privilege against self-incrimination, the right to confront and cross-examine adverse witnesses, the right to subpoena witnesses, and the right to present evidence on one's own behalf.

10. ☐ **Sibling group**
    The child and the child's siblings listed below form a sibling group in which at least one child in the sibling group was under the age of three years at the time of the initial removal, and all children in the sibling group were removed from parental custody at the same time.
    Sibling *(name):*
    a.
    b.
    c.
    d.
    e.
    f.

11. **Disposition is ordered as stated in** *(check appropriate box and attach indicated form):*
    a. ☐ *Dispositional Attachment: Dismissal of Petition With or Without Informal Supervision (Welf. & Inst. Code, § 360(b))* (form JV-416), which is attached and incorporated by reference.
    b. ☐ *Dispositional Attachment: In-Home Placement With Formal Supervision (Welf. & Inst. Code, § 361)* (form JV-417), which is attached and incorporated by reference.
    c. ☐ *Dispositional Attachment: Appointment of Guardian (Welf. & Inst. Code, § 360(a))* (form JV-418), which is attached and incorporated by reference.
    d. ☐ *Dispositional Attachment: Removal From Custodial Parent—Placement With Previously Noncustodial Parent (Welf. & Inst. Code, §§ 361, 361.2)* (form JV-420), which is attached and incorporated by reference.
    e. ☐ *Dispositional Attachment: Removal From Custodial Parent—Placement With Nonparent (Welf. & Inst. Code, §§ 361, 361.2)* (form JV-421), which is attached and incorporated by reference.

12. **The child's rights** under Welfare and Institutions Code section 388 and the procedure for bringing a petition under Welfare and Institutions Code section 388, including the availability of appropriate and necessary forms, were provided to the child as follows:
    a. ☐ Child under the age of 12 years, through the child's attorney of record or guardian ad litem
    b. ☐ Child 12 years of age or older who was present at the hearing, on the record and in writing by handing the child a copy of *Child's Information Sheet—Request to Change Court Order* (form JV-185)
    c. ☐ Child 12 years of age or older who was not present at the hearing, in writing by mailing the child a copy of *Child's Information Sheet—Request to Change Court Order* (form JV-185)

CHILD'S NAME:	CASE NUMBER:

13. ☐ **Contact with the child is ordered as stated in** *(check appropriate boxes and attach indicated forms):*
    a. ☐ *Visitation Attachment: Parent, Legal Guardian, Indian Custodian, Other Important Person* (form JV-400).
    b. ☐ *Visitation Attachment: Sibling* (form JV-401).
    c. ☐ *Visitation Attachment: Grandparent* (form JV-402).

14. The child's medical, dental, mental health, and educational information required by Welfare and Institutions Code section 16010 was provided by the ☐ mother ☐ biological father ☐ legal guardian ☐ presumed father ☐ alleged father ☐ Indian custodian ☐ other *(specify):*

15. **All prior orders not in conflict with this order remain in full force and effect.**

16. ☐ **Other findings and orders**
    a. ☐ See attached.
    b. ☐ *(Specify):*

17. ☐ **The next hearing is scheduled as follows:**

Hearing date:	Time:	Dept.:	Room:

    a. ☐ In-home status review hearing (Welf. & Inst. Code, § 364)
    b. ☐ Six-month permanency hearing (Welf. & Inst. Code, § 366.21(e))
    c. ☐ Selection and implementation hearing (Welf. & Inst. Code, § 366.26)
    (Also schedule a Welfare and Institutions Code section 366.3 status review hearing within six months.)

Hearing date:	Time:	Dept:	Room:

    d. ☐ Postpermanency hearing (Welf. & Inst. Code, § 366.3)
    e. ☐ Other *(specify):*

18. ☐ **The petition is dismissed.** Jurisdiction of the court is terminated. All appointed counsel are relieved of the duty to provide further representation.

19. Number of pages attached: _____

Date:

_____
Judicial Officer

For Your Information

You may have a right to appellate review of some or all of the orders made during this hearing. Contact your attorney to discuss your appellate rights. Decisions made at the next hearing may also be subject to appellate review. If you do not attend the next hearing you may not be advised of your appellate rights. Contact your attorney if you miss the next hearing and want to discuss your appellate rights.

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print Save Clear